

Thus Lord Eldon allowed a consignee to have a lien upon the application of general principles for proper advances upon estates in the West Indies (*a*). So the Court has enforced specific performance of articles between parties for ascertaining the boundaries of their estates abroad (*b*), has compelled a person entitled to an estate in Scotland to give effect to an equitable mortgage by deposit of deeds of the Scotch estate, though by the law of Scotland a deposit of deeds created no lien (*c*), has directed an account of the rents *and profits of lands abroad (*a*), has [*49] ordered an absolute sale (*b*), and foreclosure of a mortgage (*c*), and has relieved against a fraudulent conveyance of an estate abroad (*d*), and prevented a defendant by injunction from taking possession (*e*). In such cases, however, the Court, according to the modern doctrine, requires as a substratum for its jurisdiction that there should exist a personal privity between the plaintiff and defendant, and in the absence of such privity, no remedy lies by way of lien

(*a*) *Scott v. Nesbitt*, 14 Ves. 438.

(*b*) *Penn v. Lord Baltimore*, 1 Ves. 444, and *Belt's Suppt.*; and see *Roberdean v. Rous*, 1 Atk. 543; *Angus v. Angus*, West's Re. 23; *Tulloch v. Hartley*, 1 Y. & C. Ch. Ca. 144; *Cood v. Cood*, 33 Beav. 314; *Drummond v. Drummond*, 37 L. J. N. S. Ch. 811; 17 W. R. 6.

(*c*) *Ex parte Pollard*, 3 Mont. & Ayr. 340; *reversed* Mont. & Chit. 239. But see *Norris v. Chambres*, 29 Beav. 246. *Martin v. Martin*, 2 R & M. 507, may be supported on the ground that the mortgagee had a lien for advances and supplies. Had the lien not existed, Sir J. Leach thought the plaintiff might have compelled a sale as against the husband, but that such equity attached not to the estate, but to the person only: that after the institution of a suit, the equity would have bound the estate, but until bill filed the husband could make a good title even to a purchaser with notice; and the court instanced the case of a husband, the apparant owner of two estates of equal value, and that he made a settle-

ment of estate A. under the direction of the court, and that the trustees were afterwards evicted by defect of the husband's title: in that case the court would oblige the husband to make a settlement of estate B., but that until the bill was on the file the husband remained the owner of the estate B., and could effectually sell or charge it. As to personal equities, see further, *Morse v. Faulkner*, 1 Anst. 11, 3 Sw. 429, note (*a*); *Averall v. Wade*, Ll. & Go. temp. Sugden, 261; *Johnson v. Holdsworth*, 1 Sim. N. S. 108; *Hastie v. Hastie*, 2 Ch. D. 304.

(*a*) *Roberdean v. Rous*, 1 Atk. 543.

(*b*) *Ib.* 544.

(*c*) *Toller v. Carteret*, 2 Vern. 494; *Paget v. Ede*, 18 L. R. Eq. 118; [and see *Re Longendale Cotton Spinning Company*, 8 Ch. D. 150.]

(*d*) *Arglasse v. Muschamp*, 1 Vern. 75.

(*e*) *Cranstown v. Johnston*, 5 Ves. 278; and see *Bunbury v. Bunbury*, 1 Beav. 318; *Hope v. Carnegie*, 1 L. R. Ch. App. 320.